

TENTATIVE RULING

Case: Ghavamzadeh v. Lock
Case No. CV2025-2216

Hearing Date: March 26, 2026 **Department Fourteen** **9:00 a.m.**

Defendants Norcal Gold, Inc. and Tracy Harris' (collectively, "defendants") demurrer to plaintiff Vesta Ghavamzadeh, as Trustee of The Olivia & Elliot Trust's ("plaintiff") complaint as to the first cause of action for breach of contract is **SUSTAINED WITH LEAVE TO AMEND**.

(Code Civ. Proc., § 430.10, subd. (e).) Defendants are not parties to the agreement attached to plaintiff's complaint. (See *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; Complaint, ¶ 29, Exhibit A.) Although defendants may have entered into separate agreements with plaintiff, such agreements are not pled by their terms (verbatim or attached) or their legal effect. (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; Complaint, ¶¶ 12-34.)

Defendants' demurrer to plaintiff's complaint as to the second cause of action for intentional misrepresentation is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974; *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 208; Complaint, ¶¶ 7, 17-19, 25-26, & 35-43.)

Defendants' demurrer to plaintiff's complaint as to the third cause of action for negligent misrepresentation is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*SI 59 LLC v. Variel Warner Ventures, LLC* (2018) 29 Cal.App.5th 146, 154; *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645; *Mary M., supra*, 54 Cal.3d at p. 208; Complaint, ¶¶ 7, 15-18, & 44-50.)

Defendants' demurrer to plaintiff's complaint as to the fourth cause of action for breach of fiduciary duty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*Knox v. Dean* (2012) 205 Cal.App.4th 417, 432; *Mary M., supra*, 54 Cal.3d at p. 208; Complaint, ¶¶ 7 & 52-58.)

Defendants' demurrer to plaintiff's complaint as to the fifth cause of action for negligence is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917; *Mary M., supra*, 54 Cal.3d at p. 208; Complaint, ¶¶ 7 & 59-66.)

Defendants' demurrer to plaintiff's complaint as to the sixth cause of action for concealment is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248; *Mary M., supra*, 54 Cal.3d at p. 208; *RSB Vineyards, LLC v. Orsi* (2017) 15 Cal.App.5th 1089, 1101; Complaint, ¶¶ 7 & 67-77.)

Defendants' demurrer to plaintiff's complaint on the ground of uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) Defendants have not shown the complaint is "so

incomprehensible” that defendants cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616; see generally Complaint.)

Defendants’ demurrer to plaintiff’s complaint on the ground that it is time-barred is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Based on the complaint and matters judicially noticeable, defendants have not established that the complaint is time-barred. (Civ. Code, § 2079.4; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see generally Complaint.)

Plaintiff may amend the complaint by no later than **April 6, 2026**. (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Guzman v. Vargas**
 Case No. CV2025-1492

Hearing Date: **March 26, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Burgers and Brew Station 1, LLC's unopposed motion for a protective order is **GRANTED IN PART**. (Code Civ. Proc., §§ 2019.030, 2025.420, 2030.090, 2031.060.) Defendant has shown good cause for this Court to issue a protected order. (Code Civ. Proc., §§ 2030.090, 2031.060; see also *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250 & 1252; Halop decl., ¶¶ 2-7, Exhibits A-D.) However, the protective order is limited to the names, phone numbers, home addresses, e-mail addresses, and job titles of the third-party employees or former employees identified in response to plaintiff Carolina Viera Guzman's request for production of documents, no. 43, and special interrogatories, nos. 3 and 16.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.